

[20 & 21 GEO. 5.]

*West Ham
Corporation Act, 1930.*

[Ch. cxciv.]



CHAPTER cxciv.

An Act to authorise the mayor aldermen and burgesses of the county borough of West Ham to execute street works and to acquire lands and for other purposes. A.D. 1930.
[1st August 1930.]

WHEREAS the county borough of West Ham (hereinafter referred to as "the borough") is subject to the Acts relating to municipal corporations and the mayor aldermen and burgesses of the borough (hereinafter referred to as "the Corporation") acting by the council are the urban sanitary authority for the district thereof:

And whereas it is expedient that the Corporation should be authorised to construct the street widenings and other works by this Act authorised and to acquire lands for those purposes:

And whereas it is expedient that the other provisions contained in this Act should be made:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

And whereas estimates have been prepared by the Corporation of the expense of the works authorised by this Act and the acquisition of lands therefor and such estimates amount to the sum of seven hundred and forty-nine thousand nine hundred and thirty-nine pounds:

And whereas the several works included in such estimates are permanent works and it is expedient

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And whereas plans and sections showing the lines or situations and levels of the works by this Act authorised and plans showing the lands which the Corporation may acquire under the powers of this Act and a book of reference to such plans containing the names of the owners or reputed owners lessees or reputed lessees and of the occupiers of all such lands and describing the same have been deposited with the clerk of the peace for the county of London and with the clerk of the peace for the county of Essex which plans sections and book of reference are in this Act respectively referred to as the deposited plans sections and book of reference :

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

Short title.

1. This Act may be cited as the West Ham Corporation Act 1930.

Incorporation of Acts.

2. The following Acts and parts of Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are incorporated with and form part of this Act (that is to say) :—

(1) The Lands Clauses Acts with the following exception and modification :—

(a) Section 127 of the Lands Clauses Consolidation Act 1845 (relating to the sale of superfluous lands) is not incorporated with this Act ;

(b) The bond required by section 85 of the Lands Clauses Consolidation Act 1845 shall be under the corporate seal of the Corporation and shall be sufficient without the addition of the sureties mentioned in that section :

- (2) The provisions of the Railways Clauses Consolidation Act 1845 with respect to the temporary occupation of lands near the railway during the construction thereof and with respect to works for the accommodation of lands adjoining the railway : A.D. 1930.
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Provided that for the purposes of this Act in the said incorporated provisions of the Railways Clauses Consolidation Act 1845 the expression "the company" means "the Corporation" and the expressions "the railway" "the centre of the railway" and "the boundaries of the railway" mean respectively the several works by this Act authorised and the centre lines and the boundaries of those works respectively.

3.—(1) In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith or by the Public Health Acts have the same respective meanings unless there be something in the subject or context repugnant to such construction. Interpreta-
tion.

(2) In this Act unless the subject or context otherwise requires—

"The borough" means the county borough of West Ham;

"The Corporation" means the mayor aldermen and burgesses of the borough acting by the council of the borough;

"The town clerk" means the town clerk of the borough;

"The general rate fund" and "the general rate" mean respectively the general rate fund and the general rate of the borough;

"The Lands Clauses Acts" means the Lands Clauses Acts as modified by the Acquisition of Land (Assessment of Compensation) Act 1919;

"The tribunal" means the arbitrator or other authority to whom any question of disputed purchase money or compensation under this Act is referred in pursuance of the Acquisition

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—of Land (Assessment of Compensation) Act
1919;“The street works” means the widenings of streets
and other works by this Act authorised;“Telegraphic line” has the same meaning as in
the Telegraph Act 1878;“Statutory borrowing power” means any power
whether or not coupled with a duty of borrow-
ing or continuing on loan or re-borrowing
money or of redeeming or paying off or creating
or continuing payment of or in respect of any
annuity rentcharge rent or other security
representing or granted in lieu of considera-
tion money for the time being existing under
any Act of Parliament public or local passed
or to be passed or under any Provisional Order
confirmed by Act of Parliament passed or to
be passed or under any Order or sanction of
any Government department made or given
or to be made or given by authority of any
Act of Parliament passed or to be passed;“Statutory security” means any security in which
trustees are for the time being by or under
any Act of Parliament passed or to be passed
authorised to invest trust money and any
mortgage bond debenture debenture stock stock
or other security authorised by or under any
Act of Parliament passed or to be passed of
any county council or municipal corporation or
other local authority as defined by section 34
of the Local Loans Act 1875 but does not
include annuities rentcharges or securities trans-
ferable by delivery or any securities of the
Corporation;“Revenues of the Corporation” includes the
revenues of the Corporation from time to
time arising from any land undertakings or
other property for the time being of the
Corporation and the rates or contributions
leviable by or on the order or precept of the
Corporation.Power to
construct
works.4.—(1) Subject to the provisions of this Act the
Corporation may make and maintain in the lines or
situations and according to the levels shown on the
deposited plans and sections the works hereinafter

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In the counties of London and Essex—

In the metropolitan borough of Poplar and the borough—

Work No. 1 A widening of the carriageway on the bridge known as Bow Bridge over the river Lee and the south-western approach to that bridge by adding to such carriageway the footways on the said bridge and approach such widening commencing in the metropolitan borough of Poplar and terminating in the borough.

Work No. 2 A footway crossing the said river Lee by means of a footbridge (forming part of the said work) to the south-east of Bow Bridge such footway commencing by a junction with High Street Bromley and terminating by a junction with High Street Stratford.

Work No. 3 A footway crossing the said river Lee by means of a footbridge (forming part of the said work) to the north-west of Bow Bridge such footway commencing by a junction with Bow Road and terminating by a junction with the towing path on the left bank of the said river.

And in connection therewith the Corporation may raise the level of the said towing path in the borough between the junction of that towing path with High Street Stratford and a point 2·4 chains or thereabouts measured in a north-westerly direction from that junction.

In the borough—

Work No. 4 A widening on both sides and raising of the level of High Street Stratford commencing at the termination of Work No. 1

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by this Act authorised and terminating at a point 0·5 chain or thereabouts south-westward of the junction of Cooks Road with High Street Stratford.

Work No. 5 A widening on both sides and raising of the level of High Street Stratford commencing at the termination of Work No. 4 by this Act authorised and terminating at a point 1·6 chains or thereabouts north-eastward of the junction of Marshgate Lane with High Street Stratford.

And in connection therewith the Corporation may—

(a) widen on the south-western side and raise the level of Cooks Road between the junction of that road with High Street Stratford and a point 2·2 chains or thereabouts measured in a north-westerly direction from that junction;

(b) raise the level of Hunt's Lane between the junction of that lane with High Street Stratford and a point 0·8 chain or thereabouts measured in a south-easterly direction from that junction;

(c) raise the level of River Street between the junction of that street with High Street Stratford and a point 1·2 chains or thereabouts measured in a south-easterly direction from that junction;

(d) widen on the north-eastern side Marshgate Lane between the junction of that lane with High Street Stratford and a point 1·7 chains or thereabouts measured in a north-westerly direction from that junction.

Work No. 6 A widening on both sides and raising of the level of High Street Stratford (including the widening or reconstruction of the bridge known as Pegs Hole Bridge) commencing at the termination of Work No. 5 by this Act authorised and terminating at a point 0·3 chain or thereabouts north-eastward of the junction of Sugar House Lane with High Street Stratford.

And in connection therewith the Corporation may widen on the south-western side Sugar House Lane between the junction of that lane with High Street Stratford and a point 1·9 chains or thereabouts measured in a south-easterly direction from that junction.

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Work No. 7 A widening of the City Mill River commencing at a point on the right bank of that river 2·1 chains or thereabouts north-eastward of Marshgate Lane Bridge and terminating at a point in the said right bank 1·7 chains or thereabouts northward of Pegs Hole Bridge.

Work No. 8 A widening on both sides and raising of the level of High Street Stratford (including the widening or reconstruction of the bridges known as Sir Thomas D'Akers Bridge and St. Michael's Bridge) commencing at the termination of Work No. 6 by this Act authorised and terminating at a point 0·5 chain or thereabouts north-eastward of the junction of Warton Road with High Street Stratford.

And in connection therewith the Corporation may—

(a) lower the level of Bisson Road between the junction of that road with High Street Stratford and a point 1·2 chains or thereabouts southward of that junction;

(b) lower the level of Abbey Lane between the junction of that lane with High Street Stratford and a point 1·6 chains or thereabouts eastward of that junction;

(c) raise the level of Livingstone Road between the junction of that road with High Street Stratford and a point 0·4 chain or thereabouts south-eastward of that junction;

(d) raise the level of Union Street between the junction of that street with High Street Stratford and a point 0·6 chain or thereabouts south-eastward of that junction;

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(e) widen Warton Road on the north-eastern side thereof between High Street Stratford and a point 3·0 chains or thereabouts north-eastward of the junction of Warton Road with High Street Stratford and on the south-western side thereof between High Street Stratford and a point 2·2 chains or thereabouts north-westward of the said junction;

(f) raise the level of Warton Road between the junction of that road with High Street Stratford and a point 1·3 chains or thereabouts north-westward of that junction.

Work No. 9 A widening on the north-western side and in part on the south-eastern side and raising of the level of High Street Stratford commencing at the termination of Work No. 8 by this Act authorised and terminating at a point 0·4 chain or thereabouts south-westward of the junction of Carpenters Road with High Street Stratford.

And in connection therewith the Corporation may—

(a) raise the level of Deason Street between the junction of that street with High Street Stratford and a point 0·7 chain or thereabouts south-eastward of that junction;

(b) raise the level of Wise Road (western portion) between the junction of that road with High Street Stratford and a point 1·3 chains or thereabouts south-eastward of that junction;

(c) widen on the south-western side and lower the level of Wise Road (eastern portion) between the junction of that road with High Street Stratford and a point 2·2 chains or thereabouts south-eastward of that junction.

Work No. 10 A widening of High Street Stratford on both sides thereof commencing at the termination of Work No. 9 by this Act

authorised and terminating at a point 1·2 chains or thereabouts south-westward of the junction of Lett Road with High Street Stratford including a widening and reconstruction of Channelsea Bridge. A.D. 1930.

And in connection therewith the Corporation may—

(a) widen on the south-western side Carpenters Road between High Street Stratford and a point 1·8 chains or thereabouts north-westward of the junction of Carpenters Road with High Street Stratford and lower the level of Carpenters Road between the junction of that road with High Street Stratford and a point 1·2 chains or thereabouts north-westward of that junction;

(b) widen on the south-western side and lower the level of Park Lane between the junction of that lane with High Street Stratford and a point 1·2 chains or thereabouts north-westward of that junction.

Work No. 11 A widening on both sides and a raising of the level of High Street Stratford commencing at the termination of Work No. 10 by this Act authorised and terminating as to the widening at the junction of Bridge Road with High Street Stratford and as to the raising 1·5 chains or thereabouts south-westward of that junction including a widening alteration or reconstruction of the bridge carrying the said street over the Woolwich branch of the London and North Eastern Railway.

And in connection therewith the Corporation may—

(a) widen on the north-eastern side Lett Road between High Street Stratford and a point 1·9 chains or thereabouts north-westward of the junction of Lett Road with High Street Stratford and raise the level of Lett Road between the junction of that

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road with High Street Stratford and a point 0·6 chain or thereabouts north-westward of that junction;

(b) widen on the south-western side and raise the level of Burford Road between the junction of that road with High Street Stratford and a point 1·6 chains or thereabouts southward of that junction.

Work No. 12 A widening of High Street Stratford on the north-western side thereof commencing at the termination of Work No. 11 by this Act authorised and terminating at the junction of Martin Street with High Street Stratford.

And in connection therewith the Corporation may widen Martin Street on the south-western side thereof between High Street Stratford and a point 2·0 chains or thereabouts north-westward of the junction of Martin Street with High Street Stratford.

Work No. 13 A widening of Broadway on the south-eastern side thereof between points respectively 0·8 chain and 1·3 chains north-eastward of the junction of Chant Street with Broadway.

Power to deviate.

5. In the construction of the street works the Corporation may deviate from the lines or situations thereof as shown on the deposited plans to any extent not exceeding the limits of deviation shown on those plans and from the levels thereof as shown on the deposited sections to any extent not exceeding six feet either upwards or downwards :

Provided that the powers of this section shall not be exercised so as to reduce to less than seven feet six inches above Trinity high-water mark the headroom under any of the bridges comprised in Works Nos. 2 and 3 by this Act authorised :

Provided also that except on any bridge or the approaches thereto the Corporation shall not deviate upward from the said levels to any greater extent than four feet.

Power to make subsidiary works.

6.—(1) Subject to the provisions of this Act and within the limits of deviation shown on the deposited plans the Corporation in connection with and for the

purposes of this Act and as part of the street works may execute or do any of the following works or things (namely) :—

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- (a) Make junctions and communications with any existing streets intersected or interfered with by or contiguous to the street works or any of them and divert widen or alter the line or alter the level of any existing street for the purpose of connecting the same with any of the street works ;
- (b) Relay and alter the line or alter the level of any tramway in or along any street of which the whole or part is to be diverted widened raised lowered or otherwise interfered with under the powers of this Act and provide during such relaying and alteration any temporary line or lines of tramway which may be necessary for continuing the traffic on any tramway to be so relaid or altered ;
- (c) Suspend (either wholly or partially) for such periods as they may deem necessary the working or user of any tramway or portion thereof without being subject to any liability penalty or forfeiture by reason or in consequence of any such suspension ;
- (d) Stop up any street or part of a street within the said limits which they may consider unnecessary to retain or to throw into the street works ;
- (e) Execute any works for the protection of any adjoining land or buildings ;
- (f) Execute any works and do any things necessary for the strengthening and supporting of any walls of adjoining buildings ;
- (g) Alter or remove any drinking-trough lamp-post refuge railings or other structure erected upon any street or land within the said limits ; and
- (h) Raise lower alter and interfere with any drain sewer channel or gas or water main or pipe or electricity wire or apparatus within the said limits providing a proper substitute before interrupting the flow of sewage in any drain or

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sewer or of gas or water in any main or pipe or of electricity or telephonic communication in any wire or apparatus;

and shall make compensation for any damage done by them in the execution of the powers of this section.

(2) Provided that the Corporation shall not raise lower alter or otherwise interfere with any telegraphic line belonging to or used by the Postmaster-General except in accordance with and subject to the provisions of the Telegraph Act 1878.

(3) Provided also that any tramway relaid under the powers of this section shall be relaid in such position as may be approved by the Minister of Transport in the street in which such relaid tramway is situate as diverted widened raised lowered or otherwise interfered with as aforesaid.

Power to
alter steps
areas pipes
&c.

7. Within the limits of deviation shown on the deposited plans the Corporation may raise sink or otherwise alter the position of any of the steps areas cellars windows and pipes or spouts belonging to any house or building and may remove all other obstructions so that the same be done with as little delay and inconvenience to the inhabitants as the circumstances of the case will admit and the provisions of section 308 (Compensation in case of damage by local authority) of the Public Health Act 1875 shall apply as if the acts done under the authority of this section were done in exercise of the powers of that Act.

Under-
pinning of
houses near
street
works.

8. And whereas in order to avoid in the execution and maintenance of the street works injury to the houses and buildings within one hundred feet of those works it may be necessary to underpin or otherwise strengthen the same therefore the Corporation at their own costs and charges may and if required by the owners or lessees of any such house or building shall subject as hereinafter provided underpin or otherwise strengthen the same and the following provisions shall have effect (that is to say) :—

(1) At least ten days notice shall unless in case of emergency be given to the owners lessees and occupiers or by the owners or lessees of the house or building so intended or so required to be underpinned or otherwise strengthened :

- (2) Each such notice if given by the Corporation shall be served in manner prescribed by section 19 of the Lands Clauses Consolidation Act 1845 and if given by the owners or lessees of the premises to be underpinned or strengthened shall be sent to the town clerk : A.D. 1930. —
- (3) If any owner lessee or occupier of any such house or building or the Corporation as the case may require shall within seven days after the giving of such notice give a counter-notice in writing that he or they as the case may be disputes or dispute the necessity of such underpinning or strengthening the question of the necessity shall be referred to the arbitration of an engineer (in this section referred to as "the referee") to be agreed upon or in the case of difference appointed at the instance of either party by the Minister of Transport and the Arbitration Act 1889 shall apply to the reference :
- (4) The referee shall forthwith upon the application of either party proceed to inspect such house or building and determine the matter referred to him and in the event of his deciding that such underpinning or strengthening is necessary he may and if so required by such owner lessee or occupier shall prescribe the mode in which the same shall be executed and the Corporation may and shall proceed forthwith so to underpin or strengthen the said house or building :
- (5) The Corporation shall be liable to compensate the owners lessees and occupiers of every such house or building for any inconvenience loss or damage which may result to them by reason of the exercise of the powers granted by this section :
- (6) If in any case in which any house or building shall have been underpinned or strengthened on the requisition of the Corporation such underpinning or strengthening shall prove inadequate for the support or protection of the house or building against further injury arising from the execution or use of the works

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of the Corporation then and in every such case unless such underpinning or strengthening shall have been done in pursuance of and in the mode prescribed by the referee the Corporation shall make compensation to the owners lessees and occupiers of such house or building for such injury provided the claim for compensation in respect thereof be made by such owners within twelve months and by such lessees or occupiers within six months from the discovery thereof :

- (7) Nothing in this section contained nor any dealing with any property in pursuance of this section shall relieve the Corporation from the liability to compensate under section 68 of the Lands Clauses Consolidation Act 1845 or under any other Act :
- (8) Every case of compensation to be ascertained under this section shall be ascertained according to the provisions of the Lands Clauses Acts :
- (9) Nothing in this section shall repeal or affect the application of section 92 of the Lands Clauses Consolidation Act 1845.

Temporary
stoppage of
streets.

9.—(1) The Corporation during the execution of the powers of this Act may break up and also temporarily stop up divert and interfere with any street for the purpose of executing such powers and may for any reasonable time prevent all persons other than those bona fide going to or returning from any house in the street from passing along and using the same.

(2) The Corporation shall provide reasonable access for foot passengers bona fide going to or returning from any such house.

Power to
stop up
streets.

10. The Corporation may stop up the whole or so much as they think fit of the streets and parts of streets described in the First Schedule to this Act and thereupon the rights of way over such streets or parts of streets shall be extinguished but no such street or part of a street shall be stopped up unless the Corporation are owners in possession of all houses and lands on both sides thereof except so far as the owners lessees and occupiers of those houses and lands may otherwise agree Provided that the Corporation

shall make compensation to all parties interested in respect of any private rights of way extinguished by virtue of this section and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement. A.D. 1930.
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11. All lands acquired by the Corporation under this Act and laid into or appropriated as part of any street shall form part of that street and shall be maintained and repaired in all respects as the rest of that street is for the time being by law maintained and repaired. Land laid into streets to form part thereof.

12. Any paving metalling or material excavated by the Corporation in the construction of any works authorised by this Act from any road under their jurisdiction and control shall absolutely vest in and belong to the Corporation and may be dealt with removed and disposed of by them in such manner as they may think fit. Application of road materials excavated in construction of works.

13. Subject to the provisions of this Act the Corporation may— Carriageway footway sewers and other works.

(a) cause such parts of the street works to be laid out for carriageway and such parts thereof for footway as they may think proper; and

(b) upon or under any existing street within the limits of deviation defined on the deposited plans or any lands acquired by or vested in them under the powers of this Act and within those limits construct erect and provide such vaults cellars arches sewers drains and other works and conveniences as they may think proper for the purposes of or in connection with the street works.

14.—(1) Such parts of the structure of the bridges carrying the footways (Works Nos. 2 and 3) by this Act authorised over the river Lee as are situate in the county of London shall vest in the London County Council and such parts of the said footways and bridges as are situate in the borough shall vest in the Corporation. Vesting and maintenance of footbridges.

(2) The London County Council shall repair and maintain the whole of the structure of the said bridges

A.D. 1930. — and the Corporation shall from time to time repay to the London County Council one-half of the costs and expenses incurred by them in such repair and maintenance.

(3) The maintenance repair paving draining cleansing and lighting of so much of the said footways and of the carriageway as widened under the powers of this Act on the said Bow Bridge as is situate in the metropolitan borough of Poplar shall be under the care management control and jurisdiction of the council of the said metropolitan borough.

As to main-
tenance
of Bow
Bridge.

15. Nothing in this Act or done thereunder shall alter or affect any agreement or arrangement between the Corporation and the London County Council subsisting at the date of the passing of this Act with reference to the maintenance and repair of the bridge over the river Lee known as Bow Bridge.

Substitu-
tion of
embank-
ments for
bridges in
certain
events.

16. If at any time before the Corporation commence to construct the bridges for carrying the street works over the Waterworks River the City Mill River the Three Mills Wall River the Three Mills Back River the Pudding Mill River and the City Mill Tail Waters the Corporation or the Corporation and any other authority obtain statutory authority to stop up or divert and fill in the said rivers or any of them the Corporation may notwithstanding anything contained in this Act or shown on the deposited plans or sections demolish the existing bridge or bridges carrying High Street Stratford over the river or rivers in respect of which such authority has been obtained and construct an embankment or embankments for the purpose of carrying the said street and the street works over the site of the said river or rivers.

As to bridge
over Water-
works River
and Three
Mills Wall
River.

17. If at any time before the Corporation commence the construction of the bridge for carrying the street works over the Waterworks River and the Three Mills Wall River the Corporation or the Corporation and any other authority obtain statutory authority to widen enlarge or divert those rivers the Corporation shall notwithstanding anything contained in this Act or shown upon the deposited plans or sections construct the bridge for carrying the street works over the said rivers as widened enlarged or diverted so as to provide

a clear waterway thereunder of not less than eighty feet in the aggregate and with a headway of not less than six feet above Trinity high-water mark. A.D. 1930. —

18. If the street works are not completed on or before the first day of October one thousand nine hundred and thirty-six then as from that date the powers of the Corporation under this Act for the execution of the street works shall cease except so far as the same are respectively then completed. Period for completion of street works.

19.—(1) Subject to the provisions of this Act the Corporation may enter on take and use such of the lands delineated on the deposited plans and described in the deposited book of reference as they may require for and in connection with the construction of the street works and for the provision of space for the erection of buildings adjoining or near to such works or for the purposes of recoupment reinstatement or exchange or for other purposes of this Act. Power to take lands for street works and other purposes.

(2) The powers of the Corporation for the purchase of lands by agreement shall subject to the provisions of this Act be deemed to extend to and to authorise the purchase by the Corporation by agreement of any other lands which they may think it desirable to purchase in order to provide substituted sites or facilities for any persons whose lands may be required by them for the purposes of or in connection with the street works.

20. Subject to the provisions of this Act the Corporation may enter upon and take the lands in the borough described in the Second Schedule to this Act which are delineated on the deposited plans and described in the deposited book of reference and may hold and use the said lands for the erection of dwelling-houses for re-housing persons of the working-class displaced by the execution of the works by this Act authorised or the exercise of the powers of this Act. Power to acquire additional lands.

21. If there be any omission mis-statement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited book of reference the Corporation after giving ten days' notice to the owners lessees and occupiers of the land in question may apply to two justices acting Correction of errors in deposited plans and book of reference.

A.D. 1930. — for the borough or to a metropolitan police magistrate (as the case may be) for the correction thereof and if it appear to the justices or magistrate that the omission mis-statement or wrong description arose from mistake they or he shall certify the same accordingly and they or he shall in their or his certificate state the particulars of the omission and in what respect any such matter is mis-stated or wrongly described and such certificate or a copy thereof shall be deposited with the clerk of the peace for the county of Essex or for the county of London (as the case may be) and a duplicate thereof shall also be deposited with the town clerk or with the town clerk of the metropolitan borough of Poplar (as the case may be) and such certificate or copy and duplicate respectively shall be kept by such clerk of the peace and town clerk respectively with the other documents to which the same relate and thereupon the deposited plans and book of reference shall be deemed to be corrected according to such certificate and it shall be lawful for the Corporation to take the lands and execute the works in accordance with such certificate.

Owners may
be required
to sell parts
only of
certain
premises.

22.—(1) Whereas in the construction of the works authorised by this Act or otherwise in the exercise by the Corporation of the powers of this Act it may happen that portions only of certain properties shown or partly shown on the deposited plans will be sufficient for the purposes of the Corporation and that such portions or some other portions less than the whole can be severed from the remainder of the said properties without material detriment thereto Therefore the following provisions shall have effect :—

- (a) The owner of and persons interested in any of the properties whereof the whole or part is described in the Third Schedule to this Act and whereof a portion only is required for the purposes of the Corporation or each or any of them are hereinafter in this section included in the term “the owner” and the said properties are hereinafter referred to as “the scheduled properties” ;
- (b) If for twenty-one days after the service of notice to treat in respect of a specified portion of any of the scheduled properties the owner shall fail to notify in writing to the Corporation that he

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alleges that such portion cannot be severed from the remainder of the property without material detriment thereto he may be required to sell and convey to the Corporation such portion only without the Corporation being obliged or compellable to purchase the whole the Corporation paying for the portion so taken and making compensation for any damage sustained by the owner by severance or otherwise;

- (c) If within such twenty-one days the owner shall by notice in writing to the Corporation allege that such portion cannot be so severed the tribunal shall in addition to the other questions required to be determined by it determine whether the portion of the scheduled properties specified in the notice to treat can be severed from the remainder without material detriment thereto and if not whether any and what other portion less than the whole (but not exceeding the portion over which the Corporation have compulsory powers of purchase) can be so severed;
- (d) If the tribunal determines that the portion of the scheduled properties specified in the notice to treat or any such other portion as aforesaid can be severed from the remainder without material detriment thereto the owner may be required to sell and convey to the Corporation the portion which the tribunal shall have determined to be so severable without the Corporation being obliged or compellable to purchase the whole the Corporation paying such sum for the portion taken by them including compensation for any damage sustained by the owner by severance or otherwise as shall be awarded by the tribunal;
- (e) If the tribunal determines that the portion of the scheduled properties specified in the notice to treat can notwithstanding the allegation of the owner be severed from the remainder without material detriment thereto the tribunal may in its absolute discretion determine and order that the costs charges and expenses incurred by the owner incident to the determination of any matters under this section shall be borne and paid by the owner;

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(f) If the tribunal determines that the portion of the scheduled properties specified in the notice to treat cannot be severed from the remainder without material detriment thereto (and whether or not it shall determine that any other portion can be so severed) the Corporation may withdraw their notice to treat and thereupon they shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice;

(g) If the tribunal determines that the portion of the scheduled properties specified in the notice to treat cannot be severed from the remainder without material detriment thereto but that any such other portion as aforesaid can be so severed the Corporation in case they shall not withdraw the notice to treat shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice or such portion thereof as the tribunal shall having regard to the circumstances of the case and its final determination think fit.

(2) The provisions of this section shall be in force notwithstanding anything contained in the Lands Clauses Consolidation Act 1845 and nothing contained in or done under this section shall be held as determining or as being or implying an admission that any of the scheduled properties or any part thereof is or is not or but for this section would or would not be subject to the provisions of section 92 of the Lands Clauses Consolidation Act 1845.

(3) The provisions of this section shall be stated in or endorsed on every notice given thereunder to sell and convey any of the scheduled properties.

Power to
enter upon
property
for survey
and
valuation.

23. The Corporation and their surveyors officers and workmen and any person duly authorised in writing under the hand of the town clerk may at all reasonable times upon giving in the first instance twenty-four hours' and subsequently twelve hours' previous notice in writing enter upon and into the lands and buildings by this Act authorised to be taken and used or any of them for the purpose of surveying and valuing the said lands and buildings without being deemed trespassers and without being subject or liable to any fine penalty or punishment

on account of entering or continuing upon any part of the said lands and buildings. A.D. 1930.

24. For the purpose of determining any question of disputed compensation payable in respect of lands taken under the powers of this Act the following provisions shall apply and have effect (that is to say):—

Compensa-
tion in case
of recently
created
interest.

(1) The tribunal shall not take into account any building erected or any improvement or alteration made or any interest in land created after the first day of January one thousand nine hundred and thirty and before the date of the passing of this Act if in the opinion of the tribunal the erection of the building or the making of the improvement or alteration or the creation of the interest in respect of which the claim is made was not reasonably necessary and was carried out with a view to obtaining or increasing compensation under this Act:

(2) Subject as is hereinafter in this section provided the tribunal shall not take into account—

(a) any building erected after the date of the passing of this Act or any improvement or alteration of any premises (other than any improvement or alteration reasonably necessary for properly maintaining such premises) made after that date which in the opinion of the tribunal materially enhances the value of such premises; or

(b) any interest in land greater than that of a quarterly tenant created after the date of the passing of this Act:

(3) If at any time after the date of the passing of this Act and before the expiration of the period limited by this Act for the compulsory purchase of lands any person being the owner of or having any estate or interest in any premises which are liable to be acquired compulsorily under the powers of this Act gives notice in writing to the Corporation of his intention to erect any building upon or to make any improvement or alteration of or to create any such new interest as aforesaid.

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in those premises (such intended building improvement alteration or new interest being specifically described in the notice) and the Corporation do not within one month after receiving any such notice serve upon such person notice to sell and convey or release his estate or interest in the said premises but serve such notice at any time after the expiration of the said period of one month—

(a) paragraph (2) of this section shall not apply with respect to the building improvement alteration or new interest described as aforesaid; and

(b) paragraph (1) of this section shall apply with respect to the said building improvement alteration or new interest as if the same had been erected made or created after the said first day of January and before the date of the passing of this Act:

- (4) The Corporation shall forthwith after the passing of this Act send by post or deliver a copy of this section to all persons named in the deposited book of reference having an interest greater than that of a yearly tenant in any lands which are liable to be acquired compulsorily under the powers of this Act.

Benefits to
be set off
against
compensation.

25. In determining the amount of compensation or purchase money to be paid by the Corporation in respect of the acquisition under this Act of any part of the lands of any person the enhancement in value of the adjoining lands of such person not so acquired or of any other lands of such person which are contiguous with such adjoining lands arising out of the execution of the street works or any of them or arising through such adjoining lands becoming lands fronting on any street shall be fairly estimated and shall be set off against the said compensation or purchase money.

Persons
under disability may
grant easements &c.

26. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may (if they think fit) subject to the provisions of those Acts and of this Act grant to the Corporation any easement right or privilege (not being an easement right or privilege

of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

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27. The Corporation may subject to the provisions of this Act enter into and carry into effect agreements with any person being the owner of or interested in any lands houses or property abutting on any portion of the street works or of the lands which the Corporation may acquire under the powers of this Act with respect to the sale by the Corporation to such person of any lands or property (including any part of a street or thoroughfare appropriated by or vested in the Corporation under the powers of this Act and not required for the street works) for such consideration as may be agreed upon between the Corporation and such person and the Corporation may accept as satisfaction of the whole or any part of such consideration the grant by such person of any lands or property required by the Corporation for the purposes of this Act.

Power to
Corporation
to make
agreements
with owners
of property
&c.

28. The Corporation may enter into and carry into effect agreements and arrangements with the owners of or other persons interested in any lands or buildings which may be acquired under the provisions of this Act or which may be in the neighbourhood of the street works or any of them with respect to the reinstatement of any such owners or other persons and with respect to the exchange of lands for that purpose and the Corporation may pay or receive money for equality of exchange.

Power to
reinstate
owners of
property.

29. The powers of the Corporation for the compulsory purchase of lands under the powers of this Act shall cease on the first day of October one thousand nine hundred and thirty-four.

Limit of
time for
compulsory
purchase
of lands.

30.—(1) All private rights of way over any lands which the Corporation are authorised by this Act to acquire compulsorily shall as from the date of the acquisition of such lands by the Corporation be extinguished.

Extinction
of private
rights of
way.

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(2) Provided that the Corporation shall make full compensation to all persons interested in respect of any such rights and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

Retention
and dis-
posal of
lands.

31.—(1) Notwithstanding anything in any other Act or Acts or otherwise to the contrary the Corporation may retain hold and use for such time and for such purposes as they may think fit or may sell lease exchange or otherwise dispose of in such manner and for such consideration and purpose and on such terms and conditions as they may think fit and either in consideration of the execution of works or of the payment of a gross sum or of an annual rent or of any payment in any other form any lands or any interest therein acquired by them under this Act and may sell exchange or dispose of any rents reserved on the sale lease exchange or disposition of such lands or interests therein and may make do and execute any deed act or thing proper for effectuating any such sale lease exchange or other disposition and on any exchange may give or take any money for equality of exchange :

Provided that the Corporation shall not without the consent of the Minister of Health sell lease exchange or otherwise dispose of any such lands or any interests therein at a price or rent or for a consideration of a value less than the current market value of such lands or interests but a purchaser or lessee shall not be concerned to inquire whether the consent of the Minister is necessary or has been obtained.

(2) Nothing in this section contained shall release the Corporation or any person purchasing or acquiring any lands from them under this section from any rents covenants restrictions reservations terms or conditions made payable by or contained in any conveyance lease or other deed or instrument by which any such lands were or may hereafter be conveyed or leased to or otherwise acquired by the Corporation or any person from or through whom the Corporation may have derived or may hereafter derive title to the same but all such rents covenants restrictions reservations terms and conditions shall remain and be of as full force and

effect and may be recovered exercised enjoyed and enforced in like manner and to the same extent as if this Act had not been passed.

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32.—(1) So long as any lands remain to be acquired by the Corporation under the authority of this Act they may so far as they consider necessary apply any capital moneys received by them on any re-sale or exchange or by leasing in pursuance of the powers of this Act in the purchase of lands so remaining to be acquired but as to capital moneys so received and not so applied the Corporation shall apply the same in or towards the extinguishment of any loan raised by them under the powers of this Act or under any other powers and such application shall be in addition to and not in substitution for any other mode of extinguishment provided by this Act or any other Act under which such loans have been raised except to such extent and upon such terms as may be approved by the Minister of Health.

Proceeds
of sale of
surplus
lands.

(2) Provided that—

- (a) the amount to be applied in the purchase of lands under this section shall not exceed the amount for the time being unexhausted of the borrowing powers conferred by this Act for the purpose of such purchase;
- (b) the borrowing powers conferred by this Act for the purpose of such purchase shall be reduced to the extent of the amount applied in the purchase of lands under the provisions of this section.

33. The Corporation on selling any lands may reserve to themselves all or any part of the easements belonging thereto and may make the sale subject to such reservation accordingly and may also make any such sale subject to such other reservations special conditions restrictions and provisions with respect to the exercise of noxious trades or the discharge or deposit of manure sewage or other impure matter and otherwise as they may think fit.

Reservation
of ease-
ments &c.

34. Notwithstanding anything contained in this Act or shown upon the deposited plans and sections the following provisions shall unless otherwise agreed in writing between the Corporation and the London and

For pro-
tection of
London and
North
Eastern

A.D. 1930. North Eastern Railway Company (in this section referred
— to as “the railway company”) apply and have effect for
Railway the protection of the railway company (that is to say) :—
Company.

- (1) The Corporation shall not enter upon take or use either permanently or temporarily or purchase or acquire any lands or property belonging to the railway company but the Corporation may purchase and take and the railway company shall if and when required by the Corporation sell and grant an easement or right of using such of the lands of the railway company as may be necessary for the construction and maintenance of the street widenings (Works Nos. 11 and 12) and the bridges forming part of such works (including any alterations to or reconstruction of the existing bridge carrying High Street Stratford over the railway) and all works and temporary conveniences connected with such works and bridges (all of which street widenings bridges works and conveniences are in this section referred to as “the said works”) subject to and in accordance with the provisions of this section :
- (2) The Corporation shall pay to the railway company for any easement or right which they may acquire under the provisions of this section such consideration as may be agreed upon or in the event of difference as may be determined in manner provided by the Lands Clauses Acts with respect to the purchase and taking of lands otherwise than by agreement and for the purpose of any such determination the acquisition of such easement or right shall be deemed to be a taking of lands within the meaning of section 6 of the Lands Clauses Consolidation Act 1845 :
- (3) The Corporation shall construct the said works so far as the same will be carried across or over the railways lands works and property of the railway company in such line or situation within the limits of deviation shown upon the deposited plans as shall be agreed between the engineer of the Corporation and the engineer of the railway company or settled by arbitration

and so as in no way to obstruct impede or interfere with the free uninterrupted and safe user of the railways of the railway company or the traffic thereon and if any such obstruction impeding or interference shall be caused or take place by or in consequence of the construction of the said works the Corporation shall notwithstanding any agreement as aforesaid pay to the railway company all reasonable costs and expenses to which they may be put as well as full compensation for any loss sustained by them by reason of any such interruption or interference :

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- (4) In widening or reconstructing the existing bridge carrying High Street Stratford over the railway of the railway company the Corporation shall construct such widening or execute such reconstruction with three spans of such widths as may be reasonably approved by the engineer of the railway company and with a headway above the existing rail level of each track of the said railway not less than the minimum headway of the existing bridge over such track :
- (5) The Corporation shall twenty-eight days before they commence the construction of any part of the said works which shall or may be carried across or over the railways lands works or property of the railway company furnish to the railway company proper and sufficient plans sections drawings and specifications thereof for the reasonable approval of the engineer of the railway company Provided that if the said engineer shall not signify his disapproval of such plans sections drawings and specifications within twenty-eight days after they shall have been submitted to him he shall be deemed to have approved thereof :
- (6) The construction of the said works when commenced shall so far as they are over the railway of the railway company be carried on continuously and completed with all reasonable dispatch:
- (7) If the railway company give notice to the Corporation within twenty-eight days after

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the submission of the before-mentioned plans sections drawings and specifications that they desire themselves to construct so much of the said works as will be carried over or involve interference with or alteration of the railway or works of the railway company the railway company may on behalf of the Corporation construct the same or such portions thereof as the railway company may decide in accordance with the said plans sections drawings and specifications together with any temporary works for ensuring the safety and continuity of the traffic on the railway which may be reasonably necessary and the Corporation shall repay to the railway company the expense reasonably incurred by them in that behalf :

- (8) Before the Corporation commence the construction of any of the said works any temporary works which may be necessary to ensure the safety of the traffic on the railways of the railway company may be carried out by the railway company and the costs and expenses reasonably incurred in connection therewith shall be repaid to the railway company by the Corporation :
- (9) If by reason of the construction of any of the said works it shall become necessary to add to or alter any signal cabins signal posts signals or signalling apparatus or any telegraph or telephone wires or works on the railway the railway company may make such additions and alterations and the reasonable expense of such additions and alterations shall be repaid by the Corporation and such reasonable expense as aforesaid shall include a sum to represent the reasonable capitalised cost (i) of maintaining and working any such additional signal cabins signal posts signals or other similar works and (ii) of the increased expenses (if any) entailed in maintaining and working any such altered signal cabins signal posts signals or other similar works :
- (10) The said works so far as the same are to be carried over the railway of the railway company and all works necessary or incidental to the

execution or construction thereof or affecting the railways lands works or property of the railway company shall be executed under the superintendence (if such be given) and to the reasonable satisfaction of the engineer of the railway company and the Corporation shall bear and pay to the railway company all reasonable costs charges and expenses incurred by the railway company in respect of such superintendence and the reasonable expense of the employment by the railway company of a sufficient number of inspectors watchmen and signalmen to be appointed by them (including any compensation payable to any workmen or their legal representatives or dependants in respect of the injury or death of such workmen whilst so employed) for inspecting watching lighting and signalling the railway with reference to and during the period of construction renewal or repair of the said works (as the case may be) and for preventing as far as may be all interference obstruction danger or accident arising from any of the operations of the Corporation or from the acts or defaults of their contractors or of any person or persons in their employ or otherwise : A.D. 1930.

- (11) (i) The railway company shall maintain the structure (as widened reconstructed or altered) of the bridge carrying the said works over the railway and any additional expense reasonably incurred by the railway company in maintaining the bridge in consequence of the execution of the said works shall be paid to the railway company by the Corporation ;

(ii) The agreements respectively dated the twelfth and thirteenth days of July one thousand eight hundred and ninety-four and made between the Great Eastern Railway Company of the one part and the Corporation of the other part shall continue to have effect and shall apply to the said bridge as widened reconstructed or altered under the powers of this Act and the carriageway and footways on such bridge :

- (12) The Corporation shall be responsible for and make good to the railway company all reasonable

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costs charges losses damages and expenses not otherwise provided for which may be occasioned to the railways or station of the railway company or to any buildings or works of the railway company within the limits of deviation marked on the deposited plans by reason of the construction maintenance or failure of the said works over or adjacent to the railways lands works or property of the railway company or of any act or omission of the Corporation or of any person or persons in their employ or of their contractors or others or which may be occasioned to the railway company by reason of any accident or mishap affecting the traffic on such railways during and arising out of the construction maintenance or failure of the said works and the Corporation shall effectually indemnify the railway company from all claims and demands upon or against them by reason of such construction maintenance or failure or of any such act or omission. Provided that the fact that any work or thing has been done in accordance with any plan section or specification approved by the engineer of the railway company or in accordance with any requirement of the said engineer or under his superintendence shall not excuse the Corporation from any liability for damage as aforesaid or affect any claim of the railway company for injury to the railways of the railway company or the traffic thereon :

- (13) If at any time hereafter the railway company shall be desirous of extending widening or altering any part of their railways affected by the said works or of adapting their railway for working by electrical power the Corporation shall give to the railway company all proper and reasonable facilities for that purpose including the right in connection with such electrification to make attachments to the said works subject to the reasonable approval of the Corporation :
- (14) Before the Corporation shall interfere with any existing buildings offices or facilities at the Stratford Market station of the railway

company they shall provide such temporary buildings offices and facilities as the railway company's engineer may reasonably require and if the said engineer shall give notice to the Corporation that the railway company desire themselves to provide such temporary buildings offices and facilities the same shall be provided by the railway company at the reasonable cost of the Corporation :

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- (15) The Corporation shall at all times during the execution of the said works or the alteration of the levels of any existing street provide reasonable access for vehicular and pedestrian traffic going to or coming from any existing station or depot of the railway company :
- (16) If any difference shall at any time arise between the Corporation and the railway company touching any of the matters referred to in the foregoing provisions of this section except subsection (2) of this section the same shall be settled by arbitration as provided by this Act.

35. The following provisions shall unless otherwise agreed in writing between the Corporation and the London and North Eastern Railway Company (in this section referred to as "the railway company") apply and have effect for the protection of the railway company with respect to any temporary tramway which may be provided on the bridge carrying High Street Stratford over the Woolwich branch railway of the railway company or on the approaches to such bridge and to any tramway thereon of which the line or level may be relaid or altered under the powers of the section of this Act of which the marginal note is "Power to make subsidiary works" (which tramways and the works and apparatus in connection therewith are in this section referred to as "the tramway") :—

For further protection of London and North Eastern Railway Company.

- (1) Subject and without prejudice to the right of the Corporation to widen alter or reconstruct the said bridge under and in accordance with any other provision of this Act the Corporation shall not for the purposes of the tramway in any way vary alter or interfere with the structure of the said bridge or of the approaches thereto and they shall so construct

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and maintain the tramway over such bridge and approaches as not injuriously to affect the same :

- (2) In the event of any injury being caused to the structure of such bridge or approaches by the construction maintenance repairing use or removal of the tramway the railway company may restore the structure of such bridge and approaches or the part or parts thereof which may be so injured to as good a state and condition as they were in before such injury was occasioned and the reasonable costs incurred by the railway company in so doing shall be repaid them by the Corporation :
- (3) Whenever and so often as the railway company shall require to widen lengthen strengthen reconstruct alter or repair such bridge or approaches or to widen or alter their railways thereunder the Corporation shall afford the railway company all reasonable and proper facilities for so doing and if it shall be necessary for effecting any of such purposes that the working and user of the tramway over such bridge or approaches shall be wholly or partially stopped or delayed or that the tramway shall be temporarily diverted and the railway company give to the Corporation seven clear days' notice in writing requiring such stoppage or delay or diversion the working and user of such portion of the tramway shall be stopped or delayed or the said tramway shall be diverted accordingly at the expense of the Corporation and under the superintendence of the engineer of the Corporation if such engineer give such superintendence but only for so long as may be absolutely necessary for effecting such purposes and the railway company shall not be liable for any compensation claims demands damages costs and expenses for or in respect of such stoppage or delay or in any way relating thereto And in case the engineer of the railway company or in case of difference an arbitrator to be appointed as hereinafter provided shall be of opinion that any such strengthening reconstruction or alteration of the fabric of such

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bridge is desirable or necessary owing to the carriages or other vehicles used on the tramway being or intended to be moved by steam or any mechanical power the railway company may execute such works as the engineer of the railway company or in case of difference the arbitrator may decide to be necessary for strengthening reconstructing or altering such fabric at the reasonable expense of the Corporation and the railway company may recover from the Corporation all moneys reasonably expended by them in the execution of any such works as aforesaid :

- (4) All works which may be necessary in constructing and maintaining the tramway or for working the tramway by mechanical power over such bridge and approaches shall be constructed and maintained in all things at the expense of the Corporation and to the reasonable satisfaction of the engineer of the railway company or in case of difference of an engineer to be appointed pursuant to subsection (7) of this section and no such works shall be commenced (except in case of emergency) until the Corporation shall have given to the said engineer seven clear days' notice in writing thereof :
- (5) No turnout crossing passing place siding junction or other work shall be made upon or in connection with the portions of the tramway which will be situate in front of or within a distance of forty yards from the existing entrances to the Stratford Market station without the consent of the railway company under their common seal and without the like consent no tramcar or other vehicle or carriage used on the tramway shall be stopped or permitted to be stopped within such distance except for and only for so long as shall be absolutely necessary for the purposes of discharging and taking up passengers :
- (6) The term " Corporation " shall include any person or body of persons leasing or working the tramway :

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- (7) If any difference shall arise between the Corporation and the railway company touching this section or anything to be done or not to be done thereunder the same shall be determined by an engineer to be agreed upon or failing agreement by an engineer to be appointed by the Minister of Transport on the application of either party after notice in writing to the other :
- (8) The Corporation and the railway company may agree for any variation or alteration of the works or matters in this section provided for or in the manner in which the same shall be executed or carried into effect.

For protection of
London
County
Council.

36. Notwithstanding anything contained in this Act or shown on the deposited plans the following provisions for the protection of the London County Council (in this section referred to as "the council") shall unless otherwise agreed in writing between the Corporation and the council apply and have effect (that is to say) :—

- (1) The Corporation shall not execute or construct or commence to execute or construct the widening of carriageway (Work No. 1) or the footways (Works Nos. 2 and 3) by this Act authorised (in this section referred to as "the intended works") until they have given to the council twenty-eight days' previous notice in writing of their intention to commence the same by leaving such notice at the offices of the council with plans elevations sections and all other necessary particulars of the intended works for the reasonable approval of the council. Provided that if within twenty-eight days from the delivery of the said plans elevations sections and particulars the council do not in writing intimate any objection thereto or make any requirement with reference thereto with which the Corporation are unable or unwilling to comply they shall be deemed to have approved thereof and that if within the said period the council so intimate any such objection or make any such requirement a difference shall be deemed to have arisen between the Corporation and the council which shall be settled by arbitration :

- (2) Before commencing to execute or construct the intended works the Corporation shall give to the council six weeks' notice in writing of their intention to execute or construct the same. Within one month after receipt of the said notice the council may give to the Corporation notice in writing that the council elect to construct all or any or any part of the intended works as they may specify and in the event of the council giving any such notice the Corporation shall acquire and convey or grant to the council such lands or easements as shall be necessary for such construction and the council shall thereupon construct the work so specified in accordance with the plans elevations sections and particulars thereof as agreed or settled by arbitration. The Corporation shall be afforded reasonable opportunity for inspecting the intended works during the execution thereof. The Corporation shall on demand repay to the council such part of the cost of and in connection with such construction as the council may determine: A.D. 1930.
- (3) In constructing the intended works the Corporation shall not to any greater extent than is reasonably necessary obstruct hinder or interfere with the free uninterrupted and safe user of the tramways of the council or any traffic on such tramways and the Corporation shall indemnify the council against all claims demands costs charges and expenses arising out of any such obstruction hindrance or interference caused by the construction of the intended works:
- (4) If the Corporation shall under the powers of this Act break up or in any way interfere with the surface of any street in proximity to the tramways of the council they shall cause any such works of breaking up or interference and any structures erected in accordance therewith to be adequately illuminated at night and at all other reasonable times:

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- (5) If any difference or question shall arise between the council and the Corporation under the provisions of this section such difference or question shall be determined by arbitration.

For further
protection
of London
County
Council.

37. Notwithstanding anything contained in this Act or shown on the deposited plans the following provisions for the further protection of the London County Council (hereinafter in this section called "the council") shall unless otherwise agreed in writing between the Corporation and the council have effect (that is to say):—

- (1) If the Corporation purchase under the powers of this Act the lands respectively numbered on the deposited plans 249 250 251 255 256 257 258 259 and 260 in the borough or any of those lands or any part thereof respectively they shall on completion of Work No. 8 authorised by this Act offer to sell to the council any portions of the said lands which may not be required for the purposes of this Act and if within three months from the receipt of such offer the council intimate in writing to the Corporation their desire to purchase the lands to which such offer relates or any portion of those lands the Corporation shall sell to the council and the council shall purchase the lands or portion required by the council at such price as may be agreed between the council and the Corporation or as failing such agreement shall be determined by arbitration. Provided that for the purposes of this subsection the section of this Act of which the marginal note is "Arbitration" shall have effect as if the President of the Surveyors' Institution were named therein instead of the President of the Institution of Civil Engineers:
- (2) (a) The Corporation shall not commence the construction of Work No. 8 by this Act authorised or any works in connection therewith (in this section referred to as "the intended works") so far as the same will

pass over or near to or so as to interfere with the northern outfall sewer of the council (in this section referred to as "the said sewer") until they have given to the council twenty-eight days' previous notice in writing of their intention to commence the same by leaving such notice at the principal office of the council with plans and sections thereof as in this subsection defined and until the council have signified their approval of the same (unless the council do not signify their approval disapproval or other directions within twenty-eight days after service of the said plans and sections as aforesaid) and the Corporation shall comply with and conform to all reasonable orders directions and regulations of the council in the execution and subsequent maintenance of the intended works and shall provide by the execution of new altered or substituted works or works of defence in such manner as the council reasonably require for the proper protection of and for preventing injury or impediment to the said sewer by reason of the intended works or any part thereof and shall save harmless the council against all expenses to be occasioned thereby and the intended works and all such new altered or substituted works or works of defence shall be done by or under the direction superintendence and control of the council at the costs charges and expenses in all respects of the Corporation and all reasonable costs charges and expenses to which the council may be put by reason of any such works as aforesaid whether in the execution of works the preparation or examination of plans or designs superintendence or otherwise shall be paid to the council by the Corporation on demand and when any such new altered or substituted works or works of defence as aforesaid shall be completed the same shall thereafter be as fully and completely under the direction jurisdiction and control of the council as any sewers or works of the council now or hereafter may be;

A.D. 1930.
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A.D. 1930.

(b) The Corporation shall from time to time pay to the council the cost expenses or charges which the council may reasonably be put to or incur in the maintenance repair or management of any such new altered or substituted works or works of defence so far as the same shall be necessary for the purpose of carrying the intended works over the said sewer;

(c) The plans and sections to be submitted to the council under the provisions of this subsection shall be detailed plans drawings sections and specifications describing the exact position and manner in which and the levels at which the intended works are proposed to be constructed and shall accurately describe the position of all sewers of the council within the limits of deviation shown on the deposited plans (for which purpose the council shall allow the Corporation access to plans in their possession and to any of their sewers in order to enable the Corporation to obtain trustworthy information);

(d) The council may require such modification to be made in the said plans drawings sections and specifications as may be reasonably necessary to secure the London main drainage system against interference or risk of damage and to provide and secure a proper and convenient means of access to the said sewer;

(e) The Corporation shall at the option of the council either make good all injury or damage from time to time caused by or resulting from any of the intended works or any operations of the Corporation in connection therewith to the said sewer or any works connected therewith or bear and on demand repay to the council the cost reasonably incurred by them in making good such injury or damage;

(f) The approval by the council of any plans or superintendence by the council of any work under the provisions of this subsection shall not exonerate the Corporation

from any liability or affect any claim for A.D. 1930.
damages under this subsection or otherwise : —

- (3) If any difference or question shall arise between the council and the Corporation as to any such costs charges or expenses of the council as are referred to in paragraphs (a) or (b) of subsection (2) of this section or as to the amount of any such cost as is referred to in paragraph (e) of that subsection such difference or question shall be settled by arbitration.

38. For the protection of the Metropolitan Water Board (in this section referred to as "the board") the following provisions shall unless otherwise agreed in writing between the board and the Corporation have effect :—

For pro-
tection of
Metro-
politan
Water
Board.

- (1) Not less than twenty-eight days before commencing any of the street works in any street or road in or under which any mains pipes valves hydrants syphons plugs or other works or apparatus of the board (in this section referred to as "apparatus") are situate the Corporation shall deliver to the board a plan section and description of such street works describing the proposed manner of executing the works :
- (2) At any time within twenty-one days from the receipt of such plan section and description the board may by notice in writing to the Corporation intimate their disapproval of the proposed manner of executing such street works so far as they involve interference with or might endanger the apparatus or make any reasonable requirements with respect to such plan section or description. Any difference between the board and the Corporation under this subsection shall be determined by arbitration as hereinafter provided. Provided that if the board shall not within the said period of twenty-one days give any such notice in writing to the Corporation as aforesaid they shall be deemed to have approved the plan section and description as submitted :

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- (3) The Corporation shall not execute such street works except in strict accordance with the said plan section and description as so approved by the board or settled by arbitration and subject thereto shall execute such works to the reasonable satisfaction of the board :
- (4) Any alteration under the provisions of this Act of the position of any apparatus or any protective or substituted works which may be agreed upon between the board and the Corporation or settled by arbitration shall if the board so desire be executed by them provided that the board within twenty-one days of receiving the plan section and description of the work necessitating such alteration or protective or substituted works to be delivered to them by the Corporation under subsection (1) of this section give notice of their intention so to execute the same and the board shall commence such alteration or protective or substituted works when requested by the Corporation and execute and complete the same with all reasonable dispatch. The Corporation shall repay to the board the expense reasonably incurred by the board in executing any alteration or protective or substituted works under the provisions of this subsection :
- (5) The Corporation shall make good all damage done by them to any apparatus in the exercise of the powers of this Act and shall indemnify the board against all claims demands proceedings costs damages and expenses which may be made or taken against the board or which the board may incur by reason of any interruption in the supply of water by the board or any interference with any apparatus resulting from such exercise. The Corporation shall also pay to the board any expenses which the board may reasonably and properly have incurred in connection with any alteration of private communication pipes rendered necessary by the execution of any such works as aforesaid :
- (6) Except on such of the bridges referred to in subsection (8) of this section as are reconstructed

under the powers of this Act the Corporation shall not under the powers of this Act reduce the existing covering over any apparatus : A.D. 1930.

- (7) The Corporation shall bear and on demand pay to the board any additional cost which the board may reasonably incur in connection with the excavation of any soil or other material above any apparatus so far as such additional cost is caused by any increase under the powers of this Act of the covering over such apparatus beyond—

(a) the existing covering; or

(b) five feet

whichever is the greater :

- (8) (a) If in lieu of widening the bridges respectively known as Pegs Hole Bridge Sir Thomas D'Akers Bridge and St. Michael's Bridge or any of those bridges the Corporation reconstruct under the powers of this Act such bridges or any of them and the depth of roadway of any such bridge as reconstructed is not reasonably sufficient for the accommodation of a main or mains having a capacity or aggregate capacity equal to the capacity of the mains of the board on such bridge immediately before the commencement of such reconstruction the Corporation shall provide either in the footway or in the carriageway of such reconstructed bridge accommodation for a main or mains having such capacity or aggregate capacity as aforesaid;

(b) If any such bridge is reconstructed in any material other than concrete masonry and brick or any of those materials the Corporation shall pay to the board a sum equal to the cost incurred by the board in providing and laying in the accommodation so to be provided by the Corporation on such bridge or (if such accommodation is not provided) in the roadway thereof a steel main or mains of such capacity as aforesaid :

- (9) If the Corporation shall construct under the powers of the section of this Act of which the

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marginal note is "Substitution of embankments for bridges in certain events" an embankment in substitution for any of the existing bridges referred to in that section and there shall be situate on such bridge any apparatus the Corporation shall at their own expense provide such support for such apparatus as the board may reasonably require :

- (10) If any loss of water shall be sustained by the board by reason of any act or omission of the Corporation or of any of their contractors agents workmen or servants or any person in the employ of them or any of them the Corporation shall pay to the board the value of any water so lost as aforesaid :
- (11) Where the Corporation under the powers of this Act stop up temporarily any street or road or part of a street or road in which any apparatus is situate they shall provide reasonable access for the officers and servants of the board for the purpose of enabling them to inspect repair and renew any of the apparatus :
- (12) The board may if they think fit employ such watchmen or inspectors as they may reasonably deem necessary to watch and inspect the execution of any works under the powers of this Act so far as such works affect any apparatus and the reasonable wages of such watchmen or inspectors shall be borne by the Corporation and be paid by them upon demand to the board :
- (13) The expenses of all repairs or renewals of any apparatus which may be rendered reasonably necessary by or in consequence of subsidence resulting from the works of the Corporation whether during the construction of such works or at any time within twelve months thereafter shall be borne by the Corporation and paid by them on demand to the board :
- (14) If under the powers of this Act the Corporation widen the carriageway of any street so as to extend over any apparatus which

before such widening was situate under the footway of such street the board where it is reasonably necessary for preventing injury to such apparatus from vehicular traffic may according as the Corporation direct either—

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—

(a) relay such apparatus under the altered footway; or

(b) lower such apparatus so as to provide adequate protection against such injury;

and the Corporation shall repay to the board the expense reasonably incurred by them in so doing :

(15) Notwithstanding anything contained in this Act or done thereunder the board shall continue to be entitled to access to their existing main in Channelsea Street used for the supply of water to houses in Prospect Row for the purpose of maintaining renewing and repairing that main unless and until such other provision as the board may reasonably approve is made for such supply :

(16) If any structure erected by the Corporation under the powers of the section of this Act of which the marginal note is "Power to provide tramway refuges" is situate over any apparatus laid or placed before the erection of such structure and the board at any time after such erection give to the Corporation notice in writing of their desire to obtain access to such apparatus the Corporation shall either remove temporarily such structure or so much thereof as shall require to be so removed in order to afford such access or (if the Corporation determine not to remove such structure or part thereof) bear any additional expense due to the existence of such structure which may be incurred by the board in obtaining such access :

(17) If any difference shall arise between the Corporation and the board under this section (other than a difference as to the construction or meaning of this section) such difference shall be settled by arbitration.

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For pro-
tection of
Gas Light
and Coke
Company.

39. For the protection of the Gas Light and Coke Company (in this section referred to as "the company") the following provisions shall unless otherwise agreed in writing between the company and the Corporation have effect:—

- (1) Not less than twenty-eight days before commencing any of the street works in any street or road in or under which any mains pipes valves hydrants syphons plugs or other works or apparatus of the company (in this section referred to as "apparatus") are situate the Corporation shall deliver to the company a plan section and description of such street works describing the proposed manner of executing the works:
- (2) At any time within twenty-one days from the receipt of such plan section and description the company may by notice in writing to the Corporation intimate their disapproval of the proposed manner of executing such street works so far as they involve interference with or might endanger the apparatus or make any reasonable requirements with respect to such plan section or description. Any difference between the company and the Corporation under this subsection shall be determined by arbitration as hereinafter provided. Provided that if the company shall not within the said period of twenty-one days give any such notice in writing to the Corporation as aforesaid they shall be deemed to have approved the plan section and description as submitted:
- (3) The Corporation shall not execute such street works except in accordance with the said plan section and description as so approved by the company or settled by arbitration and subject thereto shall execute such works to the reasonable satisfaction of the company:
- (4) Any alteration under the provisions of this Act of the position of any apparatus or any protective or substituted works which may be agreed upon between the company and

the Corporation or settled by arbitration shall if the company so desire be executed by them provided that the company within twenty-one days of receiving the plan section and description of the work necessitating such alteration or protective or substituted works to be delivered to them by the Corporation under subsection (1) of this section give notice of their intention so to execute the same and the company shall commence such alteration or protective or substituted works when requested by the Corporation and execute and complete the same with all reasonable dispatch The Corporation shall repay to the company the expense reasonably incurred by the company in executing any alteration or protective or substituted works under the provisions of this subsection :

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- (5) The Corporation shall make good all damage done by them to any apparatus in the exercise of the powers of this Act and shall indemnify the company against all claims demands proceedings costs damages and expenses which may be made or taken against the company or which the company may incur by reason of any interruption in the supply of gas by the company or any interference with any apparatus resulting from such exercise The Corporation shall also pay to the company any reasonable expenses which the company may reasonably and properly have incurred in connection with any alteration of private communication pipes rendered necessary by the execution of any such works as aforesaid :
- (6) Except on such of the bridges referred to in subsection (8) of this section as are reconstructed under the powers of this Act the Corporation shall not under the powers of this Act reduce the existing covering over any apparatus :
- (7) The Corporation shall bear and on demand pay to the company any additional cost which the company may reasonably incur in connection with the excavation of any soil or

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other material above any apparatus so far as such additional cost is caused by any increase under the powers of this Act of the covering over such apparatus beyond—

(a) the existing covering; or

(b) five feet

whichever is the greater :

- (8) (i) If in lieu of widening any bridge the Corporation reconstruct such bridge under the powers of this Act and the depth of roadway of any such bridge as reconstructed is not reasonably sufficient for the accommodation of a main or mains each having a capacity equal to the capacity of the main or mains of the company on such bridge immediately before the commencement of such reconstruction the Corporation shall provide either in the footway or in the carriageway of such reconstructed bridge accommodation for a main or mains each having such capacity as aforesaid;

(ii) If at any time before the Corporation reconstruct any bridge under the powers of this Act the company by notice in writing to the Corporation so require the Corporation when reconstructing the bridge shall so far as accommodation is available and the requirements for other public services permit make provision in such bridge for a main or mains of the company of such diameter as the company shall by such notice reasonably require and the company shall be entitled to lay in accordance with the reasonable directions of the Corporation a main or mains in the position or positions in which such provision shall have been so made for the same and thereafter subject to such directions as aforesaid to maintain renew and inspect any main or mains so laid down by them as aforesaid The company shall pay to the Corporation any extra expense incurred by the Corporation in making such provision as aforesaid and the amount of such extra expense shall failing agreement between the company and the Corporation be settled by arbitration :

- (9) If the Corporation shall construct under the powers of the section of this Act of which the marginal note is "Substitution of embankments for bridges in certain events" an embankment in substitution for any of the existing bridges referred to in that section and there shall be situate on such bridge any apparatus the Corporation shall at their own expense provide such support for such apparatus as the company may reasonably require : A.D. 1930.
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- (10) If any loss of gas shall be sustained by the company by reason of any act or omission of the Corporation or of any of their contractors agents workmen or servants or any person in the employ of them or any of them the Corporation shall pay to the company the value of any gas so lost as aforesaid :
- (11) Notwithstanding the stopping up temporarily or otherwise of any street or public place under the powers of this Act the company their engineer workmen and others in their employ shall have all reasonable rights of access to all or any apparatus situate in or under any such street or public place as they had immediately before the passing of this Act and shall be at liberty to execute and do all such works and things in upon or under such street or public place as may be necessary for inspecting repairing maintaining removing or renewing such apparatus :
- (12) The company may if they think fit employ such watchmen or inspectors as they may reasonably deem necessary to watch and inspect the execution of any works under the powers of this Act so far as such works affect any apparatus and the reasonable wages of such watchmen or inspectors shall be borne by the Corporation and be paid by them upon demand to the company :
- (13) The expenses of all repairs or renewals of any apparatus which may be rendered reasonably necessary by or in consequence of subsidence resulting from the works of the Corporation

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whether during the construction of such works or at any time within twelve months thereafter shall be borne by the Corporation and paid by them on demand to the company :

- (14) If under the powers of this Act the Corporation widen the carriageway of any street so as to extend over any apparatus which before such widening was situate under the footway of such street or otherwise in the exercise of such powers cause any apparatus which is situate under the footway to be placed under the carriageway thereof the company where it is reasonably necessary may either—

(a) relay such apparatus under the altered footway ; or

(b) lower such apparatus so as to provide adequate protection therefor against injury ;
as may be agreed between the company and the Corporation or settled by arbitration and the Corporation shall repay to the company the expense reasonably incurred by them in so doing :

- (15) The Corporation shall pay to the company their reasonable charges of and incidental to the cutting off of any apparatus from any other apparatus so far as such cutting off is rendered necessary by the exercise of any of the powers of this Act :

- (16) If any structure erected by the Corporation under the powers of the section of this Act of which the marginal note is “ Power to provide tramway refuges ” is situated over any apparatus laid or placed before the erection of such structure and the company at any time after such erection give to the Corporation notice in writing of their desire to obtain access to such apparatus the Corporation shall either remove temporarily such structure or so much thereof as shall require to be so removed in order to afford such access or (if the Corporation determine not to remove such structure or part thereof) bear any additional expense due to the

existence of such structure which may be incurred by the company in obtaining such access : A.D. 1930.

- (17) If any difference shall arise between the Corporation and the company under this section (other than a difference as to the construction or meaning of this section) such difference shall be settled by arbitration.

40. Notwithstanding anything contained in this Act the following provisions for the protection and benefit of the Lee Conservancy Board (in this section referred to as "the board") shall except so far as may be otherwise agreed in writing between the Corporation and the board apply and have effect (that is to say) :— For protection of Lee Conservancy Board.

- (1) The Corporation shall not enter upon take or use any lands or property of the board other than any lands or property required to form part of any street as widened under the powers of this Act but the Corporation may purchase and take and the board shall if and when required by the Corporation sell and grant an easement or right of using such of the lands or property of the board as may be necessary for the construction maintenance and repair of the works authorised by this Act other than any such widening as aforesaid :
- (2) The Corporation shall pay to the board for any easement or right which they may acquire under the provisions of this section such consideration as may be agreed upon or in the event of difference as may be determined in manner provided by the Lands Clauses Acts and for the purpose of any such determination the acquisition of such easement or right shall be deemed to be a taking of lands within the meaning of section 6 of the Lands Clauses Consolidation Act 1845 :
- (3) Any works authorised by this Act to be constructed over or across or so as to affect or interfere with any river or stream within the jurisdiction of the board shall be constructed and thereafter maintained by the Corporation in accordance with plans sections and specifications previously submitted to and reasonably

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approved by the board and any powers affecting any such river or stream conferred upon the Corporation by this Act shall be exercised in a manner reasonably approved by the board :

Provided that if within twenty-eight days after any such plans sections and specifications have been submitted to the board they do not express their disapproval thereof they shall be deemed to have approved thereof :

(4) All bridges to be constructed widened or otherwise altered under the powers of this Act over any such river or stream as aforesaid including the bridge referred to in the section of this Act whereof the marginal note is " As to bridge over Waterworks River and Three Mills Wall River " shall have such span and headway and foundations of such depth as may be reasonably approved by the board :

(5) (a) Throughout the period of construction of the temporary and permanent works in connection with the works authorised by this Act affecting any such river or stream the Corporation—

(i) shall provide and maintain openings for the passage of vessels navigating such river or stream of such widths and having such clear headways above water level as shall respectively reasonably be approved by the board ;

(ii) shall not do anything to prevent the use of any existing towing-path unless and until a new towing-path (temporary or permanent as the case may require) has been provided in substitution therefor to the reasonable satisfaction of the board ;

(b) The Corporation shall not permit any pile-driver barge or other craft at any time except with the consent of the board (not to be unreasonably withheld) to lie in or obstruct any part of the said openings ;

(c) The owners and masters of vessels shall not be liable to make good any damage which may be caused to such temporary works except

such as may arise from the wilful act or from the neglect or default of such owners or masters or their servants or agents : A.D. 1930.

- (6) Any difference which may arise between the Corporation and the board under this section (other than a difference to be determined under the Lands Clauses Acts) shall be settled by arbitration.

41. Where under the powers of this Act the Corporation acquire for the purposes of or in connection with the street works any lands forming part of an access road to premises in the rear of premises fronting upon High Street Stratford and such access road forms the only means of approach to such first-mentioned premises the Corporation shall not build over or otherwise stop up or interfere with such access road unless or until they shall have—

Provision of means of access to back premises.

- (1) acquired the whole of the property approached by means of such access road; or
- (2) provided and made ready for use substituted means of access to the reasonable satisfaction of the owners and occupiers of the said first-mentioned premises.

42. Before breaking up or otherwise interfering with any street or road in connection with the execution of any works under the powers of this Act the Corporation shall (except in case of emergency) give seven days' notice in writing to the Commissioner of Police of the metropolis and make such arrangements with the said commissioner as may be reasonably necessary so as to cause as little interference as may be reasonably practicable with the traffic in the street or road during the construction of such works.

Notice of works to be given to Commissioner of Police.

43. The annual sums mentioned in the first column of the Fourth Schedule to this Act which are payable to the Corporation by the persons or bodies mentioned in the second column of that schedule under or pursuant to the enactments or instruments mentioned in the third column of the said schedule shall continue to be payable to the Corporation as if this Act had not been passed Provided that if the Corporation acquire under the powers of this Act the whole of any of the premises in the

Certain annual payments to continue.

A.D. 1930. borough respectively numbered 21 22 and 23 on the deposited plans (being the premises respectively known as Nos. 68 70 and 72 High Street Stratford) the annual sum payable in respect of the premises so acquired as mentioned in the said second column shall cease to be payable.

Power to
borrow.

44.—(1) The Corporation may from time to time independently of any other borrowing power borrow at interest for and in connection with the purposes mentioned in the first column of the next following table the respective sums mentioned in the second column thereof and in order to secure the repayment of the said sums and the payment of interest thereon they may mortgage or charge the revenues of the Corporation and they shall pay off all moneys so borrowed within the respective periods (which for the purposes of the enactments extended and applied to and for the purposes of this Act by the section of this Act of which the marginal note is "Application of certain provisions of existing Acts" shall respectively be "the prescribed period") mentioned in the third column of the said table (namely) :—

Purpose.	Amount.	Period for repayment.
For the execution of the street works	£ 446,146	Forty years from the date or dates of borrowing.
For the acquisition of lands - - -	303,793	Sixty years from the date or dates of borrowing.
For the payment of the costs charges and expenses of this Act as hereinafter defined - - - - -	The sum requisite.	Five years from the passing of this Act.

(2) (a) The Corporation may also with the consent of the Minister of Health borrow such further money as may be necessary for any of the purposes of this Act and in order to secure the repayment of any money borrowed under this subsection and the payment of interest thereon the Corporation may mortgage or charge the revenues of the Corporation.

(b) Any money borrowed under this subsection shall be repaid within such period as may be prescribed

by the said Minister and the period so prescribed shall be the prescribed period for the purposes of this Act and the said applied enactments. A.D. 1930.
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(3) Nothing in this section shall limit the powers conferred upon the Corporation by section 76 (Power to use one form of mortgage for all purposes) of the West Ham Corporation Act 1925.

45. The following sections of the West Ham Corporation Act 1902 (that is to say):—

Section 44 (Application of money borrowed);
 and

Application
 of certain
 provisions
 of existing
 Acts.

Section 46 (Corporation not to regard trusts);
 and the following sections of the West Ham Corporation Act 1925 (that is to say):—

Section 68 (Mode of raising money);

Section 69 (Provisions of Public Health Act 1875
 as to mortgages to apply);

Section 71 (Mode of payment off of money
 borrowed);

Section 72 (Sinking fund);

Section 74 (Appointment of receiver);

Section 75 (Protection of lender from inquiry);
 and

Section 103 (Inquiries by Minister of Health);

shall extend and apply to and in relation to the borrowing of money by the Corporation on mortgage under the powers of this Act and the repayment of money so borrowed and otherwise in respect of such mortgages as if those sections had been re-enacted in this Act with any necessary modifications with reference thereto.

46.—(1) Notwithstanding anything contained in the Public Health Acts Amendment Act 1890 or in any other Act or Order as from the first day of April one thousand nine hundred and thirty or such later date as the Corporation may by resolution determine the Corporation may (if they think fit) establish a fund to be called “the consolidated loans fund” to which shall be paid—

Consoli-
 dated loans
 fund.

(a) all moneys borrowed by the Corporation by the issue of bonds stock or other security

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together with any moneys borrowed without security in connection with the exercise of any statutory borrowing power;

(b) all moneys of a capital nature received by the Corporation whether from the sale of capital assets or otherwise except such as are applied by the Corporation with due authority to another capital purpose; and

(c) the appropriate sums provided in each year out of other funds of the Corporation to comply with the terms and conditions as to repayment attaching to their several borrowing powers or otherwise provided for the repayment of debt:

And there shall also be carried to the credit of the consolidated loans fund the unapplied balances of all moneys so borrowed or received and of all sums provided by the Corporation as aforesaid before the date on which the consolidated loans fund is established.

(2) The moneys of the consolidated loans fund shall be used or applied by the Corporation—

(a) in the redemption of stock or any other securities issued by the Corporation the purchase of bonds or stock for extinction or the repayment of any moneys borrowed by the Corporation; and

(b) in the exercise of any statutory borrowing power by transfer of the required amount to the appropriate fund and account of the Corporation:

And the moneys of the consolidated loans fund not used or applied in these ways or about to be so used or applied within a reasonable period shall be invested in statutory securities and the sums realised by the sale of such securities shall be repaid on receipt to the consolidated loans fund and the moneys of the consolidated loans fund including the accumulations arising from the investment thereof shall not except with the consent of the Minister of Health be used or applied otherwise than as provided in this subsection.

(3) There shall also be transferred to the consolidated loans fund such sums as are necessary to

meet the interest charges and the financing and other revenue expenses connected with the management of that fund and separate accounts shall be kept of these sums and their application. A.D. 1930.
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(4) The Corporation may pay into the consolidated loans fund any moneys forming part of any reserve renewals depreciation contingent insurance superannuation or other similar fund (hereinafter referred to as "the lending fund") and not for the time being required and such moneys shall be deemed to be moneys borrowed by the Corporation within the meaning of subsection (1) of this section and shall be used accordingly subject to the following conditions:—

- (a) The moneys so used shall be repaid to the lending fund as and when required for meeting the obligations for which the said fund was established; and
- (b) Interest shall be paid to the lending fund on any moneys so used and for the time being not repaid at such rate per centum per annum as may be determined by the Corporation to be equal as nearly as may be to the average rate of interest payable by the Corporation on their current borrowings.

(5) Subject to any priority existing at the passing of this Act all bonds and stock of and loans to the Corporation and the dividends and interest thereon shall be charged indifferently on all the revenues of the Corporation and shall rank equally one with another without any priority whatsoever.

(6) Save as in this section expressly provided all the obligations of the Corporation to the holders of bonds stock or other securities of the Corporation shall continue in force.

(7) Nothing in this section shall apply to moneys borrowed from the Public Works Loan Commissioners.

(8) The powers conferred by this section shall not be put into operation by the Corporation except in accordance with a scheme to be approved by the Minister of Health and such scheme may make provision for any matters incidental to the establishment and administration of the consolidated loans fund.

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Expenses of
execution
of Act.

47. All expenses incurred by the Corporation in carrying into execution the provisions of this Act except such of those expenses as are to be paid for out of borrowed money or are otherwise provided for shall be paid out of the general rate fund and the general rate.

Return to
Minister of
Health
with respect
to repay-
ment of
debt.

48.—(1) The provisions of section 81 (Returns to Minister of Health with respect to repayment of debt) of the West Ham Corporation Act 1925 shall extend and apply to the transmission of returns showing the provision made for the repayment of any loans raised or to be raised by the Corporation under any statutory borrowing power.

(2) Any provision (other than the foregoing provisions of this section and the provisions of the said section 81 of the West Ham Corporation Act 1925) of any enactment now in force in the borough requiring an annual return to be made to the Minister of Health with regard to the repayment of debt is hereby repealed.

Power to
provide
tramway
refuges.

49. The Corporation may construct and maintain in streets in the borough in which their tramways are laid refuges for the use of persons intending to enter or leaving the tramcars on such tramways:

Provided that the Corporation shall not erect any such refuge on any bridge carrying any street or road over a railway or so as to obstruct or render less convenient any existing access to or exit from any station depot or property now belonging to the London and North Eastern Railway Company.

Byelaws as
to tipping
of refuse &c.

50. Section 44 of the Public Health Act 1875 shall extend to enable the Corporation to make byelaws prohibiting restricting or controlling the tipping or depositing of soil dust refuse or other materials on any lands in the borough:

Provided that nothing in any such byelaw shall apply to the tipping or depositing of materials by the London and North Eastern Railway Company in connection with the construction or maintenance of their railways and works.

Arbitration.

51. Any difference or question which pursuant to this Act is to be settled by arbitration shall (except as

otherwise provided by this Act or any enactment incorporated therewith) be referred to and determined by an arbitrator to be agreed upon between the parties in difference or failing such agreement to be appointed on the application of either party (after notice in writing to the other of them) by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference and determination. A.D. 1930.
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52. A judge of any court or a justice shall not be disqualified from acting in the execution of this Act by reason of his being liable to any rate. Judges not disqualified.

53. Section 265 (Protection of local authority and their officers from personal liability) of the Public Health Act 1875 shall with any necessary modifications extend and apply to the purposes of this Act as if the same were re-enacted herein. Application of section 265 of Public Health Act 1875.

54. Proceedings for the recovery of any demand made under the authority of this Act or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action. Recovery of demands.

55. Nothing in this Act shall take away limit alter or prejudicially affect any right power authority jurisdiction or privilege of the London County Council or the Corporation under the provisions of the Thames River (Prevention of Floods) Acts 1879 to 1929. Saving for Thames River (Prevention of Floods) Acts 1879 to 1929.

56. When any compensation costs damages or expenses is or are by this Act directed to be paid and the method for determining the amount thereof is not otherwise provided for such amount shall in case of dispute be ascertained in the manner provided by the Public Health Acts. Compensation how to be determined.

57. All powers rights and remedies given to the Corporation by this Act shall (except where otherwise expressly provided) be deemed to be in addition to and not in derogation of any other powers rights or remedies conferred on them or on any committee Powers of Act cumulative.

A.D. 1930. — appointed by them by Act of Parliament charter law or custom and the Corporation or such committee as the case may be may exercise such other powers and be entitled to such other rights and remedies as if this Act had not been passed Provided that no person shall incur more than one penalty (other than a daily penalty for a continuing offence) for the commission of the same offence.

Costs of Act. **58.** All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the Taxing Officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the general rate fund and the general rate or at the option of the Corporation out of money to be borrowed for the purpose under the powers of this Act.

The SCHEDULES referred to in the
foregoing Act.

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FIRST SCHEDULE.

STREETS AND PARTS OF STREETS TO BE STOPPED UP.

- (a) Park Place.
- (b) New Street between Cam Road and the north-eastern side of the premises numbered 275 in High Street Stratford.
- (c) Channelsea Street between the north-westernmost corner of the premises numbered 13 in Prospect Row and the West Ham gasworks of the Gas Light and Coke Company.
- (d) Road in continuation in a southerly direction of Bisson Road and extending for a distance of 103 yards or thereabouts from the northern boundary fence of the Harrow Athletic Football Ground.
- (e) Road in continuation in a southerly direction of Leggatt Road and extending for a distance of 77 yards or thereabouts from the northern boundary fence of the Harrow Athletic Football Ground.
- (f) Road adjoining the south-western boundary of the Abbey Lane School from its junction with Claypole Road to a point 85 yards or thereabouts measured in a south-easterly direction from the said junction.
- (g) Metcalfe Road between a point opposite the southern corner of the Abbey Lane School and a point 150 yards or thereabouts measured in a south-westerly direction from the said corner.
- (h) Footpath extending from the south-western extremity of Channelsea Street to the northernmost corner of the premises numbered 33-35 in Wise Road.
- (i) Footpath extending from the north-eastern side of the premises numbered 1 in Prospect Row to Cam Road.
- (j) Channelsea Court.
- (k) Footpath extending from the south-western corner of the premises numbered 265 in High Street Stratford to the south-eastern corner of the premises numbered 275 in High Street Stratford.

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SECOND SCHEDULE.

ADDITIONAL LANDS.

(a) Lands in the borough bounded on the north in part by the southern side of the premises numbered 76-78 in Bisson Road and in other part by the southern ends of Bisson Road and Leggatt Road and the rear of the premises respectively numbered 2 to 18 (even numbers) and 20-32 (even numbers) in Claypole Road and in other part by Claypole Road on the east in part by Bisson Road and in other part by the western boundary of the Abbey Lane School on the south in part by the south-eastern bank of the open ditch adjoining Millmeads and in other part by an imaginary line in continuation of the ditch in a south-westerly direction and extending to within 10 yards from the bank of Three Mills Wall River and on the west by an imaginary straight line extending from the western extremity of the last-mentioned line to a point opposite the south-western corner of the said premises numbered 76-78 in Bisson Road.

(b) Lands in the borough bounded on the south-west by Warton Road on the south-east by the rear of premises in Biggerstaff Road on the north-west by the south-eastern boundary of the property of the London and North Eastern Railway Company and on the north-east by an imaginary straight line extending from the north-western extremity of the boundary between the premises numbered respectively 21 and 23 in Biggerstaff Road to a point on the said boundary of the property of the London and North Eastern Railway Company 3.7 chains or thereabouts measured in a north-easterly direction from the north-eastern side of Warton Road.

(c) Lands in the borough bounded on the north-east by Warton Road on the south-west by the Waterworks River and on the south-east by the north-western side of the premises numbered 47 in Warton Road and on the north-west by an imaginary straight line parallel with and at a distance of 5.3 chains or thereabouts measured in a north-westerly direction from the said south-eastern boundary.

(d) Lands in the borough bounded on the west by Bisson Road on the south in part by the northern boundary of premises numbered 1 in Bisson Road in part by the north-western boundary of premises numbered 2-20 (even numbers) in Roberts Road and in other part by the north-western boundary of premises numbered 2 in Abbey Lane and on the north-east in part by the south-western boundary of premises numbered 20 in Roberts Road and in other part by Abbey Lane.

(e) Lands in the borough bounded on the north-east in part by Cam Road in part by the south-western boundary of premises numbered 335–337 in High Street Stratford in part by the south-west boundary of the school of the West Ham Education Committee and in other part by the south-western boundary of the premises numbered 13 in Prospect Row on the north-west in part by the south-eastern boundary of premises numbered 277 to 333 (odd numbers) in High Street Stratford and in other part by the south-eastern boundary of premises numbered 265 to 275 (odd numbers) in High Street Stratford on the south-west in part by the north-eastern boundary of premises numbered 275 in High Street Stratford in part by Wise Road in part by the north-eastern boundary of premises numbered 5 to 27 (odd numbers) in Wise Road and in other part by the north-eastern boundary of vacant land on the north-eastern side of Wise Road and on the south-east in part by the north-western boundary of premises numbered 5–7 in Wise Road in part by the north-western boundary of the West Ham gasworks of the Gas Light and Coke Company in part by the north-western boundary of the premises numbered 1 to 13 (odd and even numbers) in Prospect Row and in other part by the north-western boundary of premises numbered 1 in Cam Road.

A.D. 1930.

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THIRD SCHEDULE.

PROPERTIES OF WHICH PARTS ONLY MAY BE ACQUIRED

BY THE CORPORATION.

Area.	Numbers on deposited plans.													
Metropolitan borough of Poplar (county of London).	1	2	3	5.										
County borough of West Ham (county of Essex).	1	2	4	7	20	25	31	33	48	51	76	88	97	106
		120	121	124	135	146	173	180	203	229				
		232	243	244	245	246	247	253	266	272				
		274	284	315	327	336	337	338	339	355				
		356	357.											

A.D. 1930.

FOURTH SCHEDULE.

1.	2.	3.
Annual sum.	By whom payable.	Enactment or instrument.
£ s. d. 112 10 0	The mayor and commonalty and citizens of the city of London.	Section 10 of the West Ham Local Board Act 1867.
120 0 0	The London County Council.	Agreement dated 31st January 1860 and made between the Metropolitan Board of Works of the one part and the Trustees of the Middlesex and Essex Turnpike Roads of the other part : and Agreement dated 24th June 1898 and made between the Corporation of the one part and the London County Council of the other part.
14 0 0	The owners for the time being of the premises numbered 68 High Street Stratford.	Indenture dated 17th January 1873 and made between Edward Absolon and Richard Westall of the first part David Davy of the second part and the Local Board of Health for the district of West Ham of the third part.
7 10 0	The owners for the time being of the premises numbered 70 High Street Stratford	
16 0 0	The owners for the time being of the premises numbered 72 High Street Stratford.	

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FOR

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